6.5.2 Sexual Harassment Policy

Background

As an organization we are committed to ensuring that the work environment at all our locations is conducive to fair, safe and harmonious relations between employees. Discrimination and harassment of any type is strictly prohibited. We are also committed to ensuring that no employee is disadvantaged by way of gender discrimination.

To ensure that there is absolute clarity on the important and sensitive issue of sexual harassment, this note annunciates the organization's approach to the issue and its policy for dealing with any incident/s pertaining to this.

Scope of this Policy

This policy applies to all individuals who are employed in permanent, contractual or temporary capacity at any location of Magic Bus India Foundation.

Definition of Issue

A broad definition of sexual harassment is as follows: any physical or verbal behavior and any form of communication that has unnecessary, improper or unwelcome sexual connotations. Sexual harassment may vary in form depending on circumstances. It may consist of, but not be limited to, any of the following:

- Unwelcome sexual advances, requests for sexual favors, display of sex- related visuals, audios, pornographic or obscene material and any other verbal or physical conduct of a sexual nature.
- Transmitting any message, by mail, telephone, e-mail etc. that is obscene, lewd, suggestive or blatantly sexual in nature.
- Any explicit or implicit communication wherein a sexual favor or demand, whether by words or actions, is made a condition for an individual's employment, career progress, promotion etc.
- Sexually charged jokes or remarks and behavior which have sexually oriented innuendoes.
- Consistent pattern of unnecessary physical contact, staring, or targeting unreasonable attention at an individual in day- to-day dealings.
- Any pervasive pattern of behavior which makes employee/s uncomfortable, insecure or feel humiliated or disadvantaged on the basis of gender differentiation.
- Actual sexual assault.

This is an indicative on not an exhaustive list of the possible forms sexual harassment can take.

Organization Policy on Sexual Harassment

The organization policy is to totally prohibit any form of sexual harassment. This applies equally to relations between superior and subordinates as well as between peers. Any incident of sexual harassment will be viewed extremely seriously. A complaint or report of sexual harassment will be immediately investigated and appropriate action will be taken against the offending employee or employees. Such action will depend on the nature and seriousness of the offence and will include strict disciplinary action including termination of service.

Complaints Handling Process

The organization has established the following process to ensure that any incidence of sexual harassment is dealt with appropriately, sensitively and expeditiously.

Complaints Committee for Sexual Harassment – Zone wise

Sr. No.	Employee Name	Core Zone	Email ID
1	**Mary Jones Lallawmawmi**	East	posh.east@magicbusindia.org
2	Somenath Ghosh	East	
3	Sujit Ghosh	East	
4	Bhumisuta Sahu	East	
5	Maneeshee Kumar	East	
6	Padmini Pathi	East	
7	Dr. Sandya Advani	East	

Sr. No.	Employee Name	Core Zone	Email ID
1	**Diana Peters**	HO/ West	posh.west@magicbusindia.org
2	Apoorva Deepesh Punekar	HO/ West	
3	Nilesh Desai	HO/ West	
4	Pravina Kukade	HO/ West	
5	Ritesh Dhote	HO/ West	
6	Onkar Dilip Kotulkar	HO/ West	
7	Akriti Manchanda	HO/ West	
8	Dr. Sandya Advani	HO/ West	

Sr. No.	Employee Name	Core Zone	Email ID
1	**Smita Shendye**	North	posh.north@magicbusindia.org
2	Sandeep Singh	North	
3	Vikas Khanna	North	
4	Jaya Verma	North	
5	Manish Pathak	North	
6	Dr. Sandya Advani	North	

S.No	Employee Name	Core Zone	Email ID
1	**Deepa Rajkamal**	South	posh.south@magicbusindia.org
2	Yalamanchi Siva Ranjani	South	
3	Pasumarthy Venkata Gowri Soujanya	South	
4	Anuja V S	South	
5	Vijay Kotina	South	
6	Nicholette Joyce	South	
7	Bindu A	South	
8	Kandipalli Ananda Rao	South	
9	Dr. Sandya Advani	South	

Process for dealing with incidents of sexual harassment

- Any employee who experiences sexual harassment can get in touch with any member of this committee whose contact details are provided above for convenient and confidential access or may write to poshicc@magicbusindia.org which is accessible only to the Presiding Officers for needful action. Alternatively, the affected employee may approach any senior employee and the senior employee must inform a member of the committee immediately. All such complaints shall be in writing with full details of the incident. *(Pls refer Annexure below for suggested format)*
- On receipt of such a complaint, the committee will immediately arrange to fully investigate all relevant details of the matter. It will do so with all possible care, sensitivity and discretion in protecting the sensibilities of the effected employee. The employee or employees, who have allegedly committed the offence, would be given all reasonable opportunity to be heard by the committee.
- The result of this investigation will be formally recorded and communicated to the CEO, along with a recommendation for appropriate action.
- The committee will normally complete this process and make its formal recommendation within 21 days after receiving the complaint unless there are exceptional circumstances.
- Necessary action will then be taken with regard to the offending employee or employees, based on the circumstances and seriousness of the offence.
- Where the organization is legally advised that any such incident constitutes a criminal offence, the organization will inform the relevant authority, provide full details and request appropriate action. If the aggrieved employee directly takes any action, against the offending employee, either civil or criminal, the committee, on becoming aware of such action by the aggrieved employee, shall be entitled to, suo-moto, start the internal enquiry/investigation and recommend appropriate action.
- The organization will ensure that the career interests of the complainant are not adversely affected by virtue of the individual having drawn attention to such an offence.
- In order to ensure that this important matter is not trivialized, any complaint, which, in the opinion of the committee, is blatantly false or frivolous or has been motivated by reasons that are clearly unconnected with gender issues, would be viewed very seriously by the organization and appropriate action taken against such complainants.
- If the committee receives an anonymous reference related to sexual harassment, it will draw the attention of the senior employees concerned with the relevant function or location. The matter will be fully examined by the concerned senior management and its conclusions and plan for necessary action will be communicated to the committee.

Heads of departments and seniors at all organization locations are also expected to be sensitive to any circumstances or behavior among their colleagues which appear to go against the organization policy on this matter. In case they become aware of any such incidence, they will immediately inform the head of the committee and take appropriate action as advised.

Annexure – Format for filing POSH complaint

Date: _____

To,
The Internal Committee,
Magic Bus India Foundation

Sub: Complaint regarding Sexual Harassment

Details of the Complainant:

Name	
Designation	
Employee Code	
Department	
Contact Number	
Workplace Address	

Details of the alleged Respondent (s)*:

Name	
Designation	
Employee Code	
Department	
Contact Number	
Workplace Address	

* *Add additional tables in case of more than one Respondent.*

Details of the Incidents:

Incident 1
Date and Time
Location
Description of the incident
Evidence if any
Witnesses if any

Any other information

Incident 2
Date and Time
Location
Description of the incident
Evidence if any
Witnesses if any
Any other information

Place: _____ **Signature of the Complainant**

Note:

- *In case there are more incidents, please use the same format.*
- *Complainant is required to sign on all pages of the complaint.*
- *The Complainant may use a supplementary page to provide detailed information about the incident.*